



better working conditions and collecting funds for members in distress. At this time, two incidents brought the legal status of trade unions into focus. The first was the case of *Hornby v. Close* (1867), in which it was ruled that because a trade union restrains competition, it cannot be protected from embezzlement by the laws that apply to friendly societies (mutual associations formed for cooperative banking). This meant that trade unions were at great risk of having their funds stolen by untrustworthy members. The second incident was a spate of violence in Sheffield carried out by trade unionists against nonunion members.

As a result of these two incidents, in 1867, the government set up the Royal Commission on Trade Unions to investigate their legal status but could not agree on an outcome. A Majority Report offered little in the way of legal changes, but a Minority Report,

During the Great Railroad Strike of 1877 in the United States, more than 100,000 workers fought for the right to organize in a trade union. The strike was broken by soldiers and police.

championed by lawyer and historian Frederic Harrison, argued for trade unions to get legal protection from criminal and restraint-of-trade laws.

Global movement

Toward the end of the 19th century, as the Industrial Revolution gathered pace beyond Britain, trade unions began gaining strength across the globe. In the United States, craft guilds had existed on a local level since the 18th century, and labor reform movements sprang up from the 1860s onward to campaign

In industrial cities such as Sheffield, UK, thousands of workers were at the mercy of unscrupulous employers in the 19th century. Trade unions sought to give them greater collective strength.

for better working conditions. But it was not until 1886 that the first national trade union, the American Federation of Labor (AFL), was established. In Germany, trade unionism was initially suppressed by Otto von Bismarck's anti-socialist laws, but once these had been repealed, the Free Association of German Trade Unions was established in 1897. Similarly in France, the formation of trade unions was illegal until 1884, after which time they flourished. The growth in trade unions was reflected by the creation of the International Secretariat of National Trade Union Centres (ISNTUC) in 1901, the first global trade union body, which helped to develop and support new union federations around the world.

Legalizing trade unions

In the UK, the Liberal government of William Gladstone opted for Harrison's Minority Report and pushed forward with the 1871

